

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

December 14, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mayor Kaysen explained a point of information pertaining to Agenda Item #17(g), stating the item should have been introduced as a resolution instead of a contract and that it would be referred to Finance Committee as a resolution instead of a contract. Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON NOVEMBER 23, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON DECEMBER 7, 2009. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Spiker moved to divide the question to allow for a separate vote on the voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Mr. Spiker moved to approve payment of the voucher payable to Ameri-Tech HVAC Services, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers. Upon inquiry regarding a voucher payable to CivicPlus (\$850), City Clerk Carol Intlekofer explained payment is for a one time setup fee for social networking sites Facebook and Twitter in conjunction with the city's website to disseminate information to the public. Motion to approve remaining vouchers as presented carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE REPEALING SECTION 9.08.030, GAMBLING-PROHIBITED-EXCEPTIONS, AND SECTION 9.08.040, VIOLATIONS BY OWNER OR OCCUPANT OF PREMISES WHERE GAMBLING CONDUCTED, OF TITLE 9, PUBLIC PEACE AND WELFARE, CHAPTER 9.08, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, OF THE CHEYENNE CITY CODE." Bryan Grzegorzcyk, speaking on behalf of the Laramie County Liquor Association, stated that ideally Association members would like to have state statutes pertaining to gambling adopted without local ordinance provisions, but that the group is in favor of working with the governing

body on proposed ordinance changes. Also providing comments on the proposed gambling ordinance were: Mike Randelman, Mike Langhoff (co-owner of Two Bar Bowl), Matthew Havens, Mary Shappell, Dan Shappell, Kenneth Atell and Donn Edmunds. Topics presented and discussed included: Repealing current city code and adopting state law; suggestion of postponement of the ordinance to provide for input from poker players within the community; support of tournament-style poker games and non-profit fund raising opportunities; opposition to minimum non-refundable \$25.00 permit fee; concerns with distribution of fees and lack of refunding a permit fee if a game is cancelled; who would be authorized to examine or review the books and records involving an event for which a permit has been obtained; permit application process and burden to applicants; advertising of games; poker as a game of skill; on-line betting and football/sports-type pools; providing flexibility of gaming rules, and support for changing current city code. Upon inquiry during audience discussion, Dan White, City Attorney, stated that most of the time a police officer would be the individual designated to review the books and records involved with a poker event; advised of requirements under state law that must be met to constitute a bona fide social relationship, and discussed distribution of gaming proceeds relative to what could constitute professional gambling, advertising restrictions, and intent of the revised ordinance to provide a permitting process for certain types of tournament-style poker events. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute ordinance dated 12-9-09 which includes an amendment recommended at the Public Services Committee meeting to change the word "present" to "participating" in Section 2. of the ordinance, Section 9.08.030 B., seconded by Mr. Pierson. Discussion followed on who would be required to apply for a permit (i.e. organizer of the event) pursuant to wording that was changed in the substitute ordinance, and an affidavit requirement by the property owner/proprietor of the facility where tournament-style poker events would be held. Mr. Collins moved to amend the substitute with a revised substitute ordinance, seconded by Mr. Pierson. Mr. Randelman, Mr. Langhoff, Mr. Shappell and Ms. Shappell questioned the advocacy of the city's involvement in gambling; suggested changing the word "poker" to "gambling", and discussed allowing someone other than the applicant of the permit to be present at the games in case the applicant is unable to be present, and the permit fee vs. participant buy-in amount. Discussion followed on the purpose of the original ordinance, which was to repeal current city code and adopt state statute provisions involving gambling, and "compromising" to legally allow for tournament-style poker events as outlined in the revised substitute. Motion to amend the substitute with a revised substitute ordinance carried. Voting "yes" – all members of the governing body with the exception of Mr. Brown and Ms. Case voting "no". Mr. Collins moved to amend Section 2. of the ordinance, Section 9.08.030 D. from \$25.00 to \$5.00 as the minimum amount for the non-refundable permit fee or the amount equal to the participant's buy-in, whichever is greater, seconded by Mr. Spiker. Comments followed concerning the assessment of a permit fee. Upon inquiry, Mr. White explained the intent of a permit fee is to recoup the city's cost involving permit processing and issuance; clarified that all funds of the game must be distributed to game participants, and expressed his belief that the city would not be considered as participating or endorsing gambling relative to liability concerns. During discussion, Mr. Pierson raised a point of order with Mayor Kaysen concurring that comments should pertain to the current motion to amend involving the permit fee. Further discussion followed on regulating poker events affiliated with a permit vs. those poker events not requiring a permit. Motion to amend failed (due to a tie vote). Voting "yes" – Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Spiker and Mayor Kaysen. Voting "no" – Ms. Ash, Mr. Brown, Ms. Case, Dr. Rinne, and Mr. Valdez. Mr. Brown moved to amend to remove sub-section D. in its entirety. Motion died due to lack of a second. Discussion continued on the proposed permit and fee. Upon inquiry, City Clerk Carol Intlekofer advised upon her brief review involving staff time and supply cost to process and issue a permit, she estimated the cost would be approximately \$30. Ms. Ash moved to amend sub-section D. to state the amount of the non-

refundable permit fee shall be equal to the buy-in of the poker event if the buy-in is \$25 or greater, and if the buy-in is less than \$25 then no permit would be required, seconded by Mr. Valdez. Mr. Langhoff, Mr. Randelman, Mr. Shappell, Mr. Havens, and Mr. Grzegorzczuk commented on the proposed amendment. Topics included whether other areas of the ordinance would be affected by the amendment; support for the amendment; suggestion of postponing the ordinance for further review and input; permitting vs. not permitting games under the buy-in amount, and permit application time frame relative to each poker event. Mr. Collins suggested a friendly amendment to the motion concerning inclusion of affiliated wording in sub-section B. (3) as well as within any other appropriate areas of the ordinance. Following a 5 minute recess to review ordinance areas that might involve additional changes due to the proposed amendment, Mayor Kaysen reconvened the meeting at 7:35 p.m. John Knepper, Assistant City Attorney, stated there would be three places in the ordinance that would need to be changed to effectuate the proposed amendment: Sub-section B.(3), and sub-sections C. and D. Ms. Ash, with concurrence by Mr. Valdez as second to the motion, agreed to include changes to the areas outlined by Mr. Knepper in her previous motion to amend. Upon inquiry, Mr. Knepper clarified the proposed ordinance does not affect any underlying requirements; that the activity must be a tournament-style poker game with participants being at least 21 years of age. Motion to amend as revised carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no". Comments followed regarding lack of input on the proposed ordinance provisions by interested members of the community, and incidental affiliated monetary benefits, excluding gaming proceeds, that may be received by certain businesses where poker events may be held. Motion to amend by substitute as amended by revised substitute ordinance, as amended, carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no". Discussion on the main motion as amended followed and included comments regarding the minimum 21 years of age requirement for poker event participants. Mr. Brown moved to amend by striking sub-section B. (1) in its entirety, seconded by Dr. Rinne. (Clerk's note - sub-section wording is as follows: "... The poker event is a tournament-style poker game, in which all participants are at least 21 years of age, pay a fee for participation, and all betting is conducted with chips allocated equally among all participants; ...".) Mr. Langhoff, Mr. Shappell and Mr. Havens spoke in favor of adopting state law vs. the ordinance, and made comments either for or against the proposed amendment. Mr. Brown withdrew his motion with concurrence by Dr. Rinne as second to the motion. Mr. Valdez moved to postpone for 90 days (to approximately March 8, 2010), seconded by Ms. Case. Pacomio Sandoval commented on community gambling and spoke in support of socialized gambling only. Tom Sanders, Mr. Shappell, Julie Russell, Mr. Grzegorzczuk and Ms. Shappell spoke in opposition to postponement generally. Additional comments included support for repealing current city code and adopting state statute provisions, and suggestion that a committee be formed to work on a draft for a future ordinance. Upon inquiry, Mayor Kaysen stated if the ordinance as amended is not approved, provisions of existing city code would be enforced, and Mr. White reviewed postponing the proposed ordinance vs. repealing the existing ordinance regulating gambling. It was clarified that the proposed ordinance only regulates tournament-style poker games and that all gambling activities and events must comply with state statute. Mr. Valdez withdrew his motion to postpone with Ms. Case stating she was not in agreement and would not withdraw her second to the motion. Mr. Collins called for the previous question (to limit debate), seconded by Mr. Brown. Upon inquiry, Ms. Intlekofer explained her understanding of the process involving the call for the previous question, and stated the motion was non-debatable. Motion (to limit debate) carried. Voting "yes" – all members of the governing body. Motion to postpone for 90 days failed. Voting "no" – all members of the governing body. Ms. Ash moved to amend sub-section B. (1) by striking participants must be at least "... 21 years of age ..." and replacing with "... 18 years of age ...", seconded by Mr. Collins. Discussion followed on the participant age limit and included

comments of concern regarding correlation of youth drinking and gambling. Mr. Brown called for the previous question (to limit debate), seconded by Ms. Ash. Motion failed. Voting “yes” – Ms. Ash, Mr. Brown, Mr. Collins, Mr. Valdez and Mayor Kaysen. Voting “no” – Ms. Broyles, Ms. Case, Mr. Pierson, Dr. Rinne and Mr. Spiker. Comments followed on the administrative guidelines affiliated with poker event permit activities, and the proposed amendment to reduce the age of event participants from 21 to 18 years of age. Motion to amend carried. Voting “yes” – Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Voting “no” – Ms. Broyles, Ms. Case, Mr. Pierson and Mr. Spiker. Upon inquiry, Mr. White advised the administrative guidelines are subject to change and are not a part of the actual ordinance. Comments followed on the governing body’s ability to enact regulations more restrictive than state statute. Mr. Pierson moved to amend Section 3. of the revised and amended substitute ordinance by striking “but not sooner than February 1, 2010”, enabling the ordinance to become effective upon approval and publication, seconded by Ms. Broyles. Mr. Randelman, Mr. Atell, Mr. Langhoff, Mr. Edmunds and Ms. Shappell provided comments. Topics presented and discussed included: Opposition to the ordinance, possible future discussions which may involve ordinance amendments, and types of gambling legally allowed per state statute and the ordinance. Upon inquiry, Mr. Knepper clarified under the ordinance if poker is played in a public place it has to be tournament-style poker. Upon request to clarify amendments made to the ordinance during the meeting, City Clerk Intlekofer reviewed the motions that had been made and approved during discussion. Further comments were made regarding controls and guidelines for allowing social gambling in the community, and when the ordinance would become effective. Motion to amend to provide for the effectiveness of the ordinance upon approval and publication carried. Voting “yes” – all members of the governing body. Discussion continued on the proposed ordinance, current city code, and adoption of state law provisions instead of the revised substitute ordinance as amended. Ms. Ash moved to amend sub-section C. by “ ... authorizing the mayor to appoint agents, including its police officers, to seek any additional information ...”, seconded by Mr. Collins. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Ms. Case voting “no”. Motion carried to approve the revised substitute as amended. Voting “yes” – all members of the governing body with the exception of Ms. Case voting “no”. Comments followed regarding supporting an enforceable ordinance, athletic sports pools, and tournament-style poker games. Main motion to approve as amended by revised substitute ordinance as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown and Ms. Case voting “no”. (#3877)

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 9:07 p.m.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR A PORTION OF LOTS 6-17, AND VACATED 16' ALLEY, BLOCK 405, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO W. LINCOLNWAY, EAST OF STINSON AVENUE).” Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body. (#3878)

“AN ORDINANCE AMENDING A PORTION OF THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE PERTAINING TO THE RECYCLE RESIDENTIAL COLLECTION MONTHLY FEE, AS APPROVED BY ORDINANCE NO. 3851 ON JUNE 8, 2009.” Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Ms. Broyles.

Discussion followed on previous amendments and costs associated with implementing the recycling program. Mr. Collins moved to amend the fee for 60 gal. containers from \$2.00 to \$3.00, seconded by Dr. Rinne. Upon inquiry, Public Works Director Jim Elias clarified staff's initial fee proposal for 60 gal. containers was \$5.00 and that a \$3.00 fee was acceptable as a current option as data is still being compiled as to operational costs for the program. Upon inquiry pursuant to a point of clarification being raised, it was advised the fee schedule would also be amended in conjunction with the ordinance. Comments followed on an amendment approved at the last City Council meeting vs. the proposed amendment. Mr. Elias noted the proposed amendment would also affect Note 8 included in the ordinance relative to the 60 gallon trash/60 gallon recycle fee (ie: \$15 to \$16). Mr. Collins, with concurrence by Dr. Rinne as second to the motion, revised his previous amendment to include the change in fee also be reflected in Note 8 for 60 gal trash/60 gal recycle from \$15 to \$16. Comments followed regarding discussion held at the Finance Committee meeting regarding costs and proposed fees. Mayor Kaysen advised studies are currently being conducted to collect data to present a true cost of services that will be reviewed in conjunction with the next regularly scheduled rate review ordinance which is scheduled for an effective date of July 1, 2010. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Ms. Broyles, Ms. Case and Mr. Pierson voting "no". Comments followed in support of sustaining the residential recycling program and recouping costs already invested. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Ms. Case voting "no." (#3879)

[CA] "A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE FEBRUARY 2010 APPLICATION FOR THE COUNTYWIDE CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A RESOLUTION SUPPORTING THE CITY OF CHEYENNE'S APPLICATION FOR CONGESTION MITIGATION/AIR QUALITY (CMAQ) FUNDS FOR THE CONSTRUCTION OF A MODERN ROUNDABOUT AT THE INTERSECTION OF PERSHING BLVD./CONVERSE AVE./19TH ST. (2007-2010 1% SALES TAX)" -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION REQUESTING RELINQUISHMENT OF A PORTION OF A STATE HIGHWAY RIGHT-OF-WAY LOCATED WITHIN THE CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED IN THE VICINITY OF NATIONWAY BETWEEN DUNN AND LOGAN AVENUES)" -- referred to Public Services Committee (sponsor - Mr. Valdez).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR CATHEDRAL COMMONS, 2ND FILING, A REPLAT OF BLOCK ONE, CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND GARDENIA DRIVE)" -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] "A RESOLUTION DESIGNATING LOCAL BANKS AS DEPOSITORIES FOR MUNICIPAL FUNDS" -- referred to Finance Committee (sponsor - Mr. Valdez.).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGE:

[CA] Preliminary Plat for Block 140, Original City, 2nd Filing, a replat of Lots 1-8, Block 140, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue) -- referred to Public Services Committee.

[CA] Preliminary Zone Change from MR-1 Medium Density Residential-Established District to PUD Planned Unit Development District for Lot 1, Original City Block 140, 2nd Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 24th Street and Warren Avenue) -- referred to Public Services Committee.

LEASES/CONTRACTS/LEGAL:

[CA] Professional Services Contract between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services, for grant funding for Intensive Support Mentoring for youth in the Municipal Court System. Motion (per Consent Agenda) carried (\$69,275.00 revenue to City). (#5491) Under other business later in the meeting, Ms. Ash distributed additional information (on file with office of City Clerk) regarding the program.

[CA] Agreement of Acceptance between the City of Cheyenne and the Wyoming Department of Transportation for 0.16 acres of highway right-of-way adjacent to Nationway between Dunn Avenue and Logan Avenue for the purpose of building Greenway Pathways (Greenway construction funded by 2007 Norris TEAL Grant) -- referred to Public Services Committee.

[CA] Lease Agreement between Francis E. Warren Post No. 1881, Veterans of Foreign Wars and the City of Cheyenne, Parks and Recreation Department, for the city's use of Pride Park Softball Complex -- referred to Finance Committee.

[CA] Agreement with Laramie County to provide radio communications equipment to the City of Cheyenne, Public Works Department, purchased with funds from U.S. Department of Homeland Security and administered by Wyoming Department of Homeland Security (Partial 2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Wyoming Department of Transportation for a Transportation Enhancement Activities - Local (TEAL) Grant for continuation of the Greenway System (Walterscheid Pedestrian Underpass Project) (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ayres Associates for design and construction engineering services for the E. Pershing Blvd. Reconstruction Project (Phase IV) (2003-2006 & 2007 - 2010 1% Sales Tax, BOPU) -- referred to Finance Committee.

[CA] Authorization for the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Award for a Class II Cultural Resource Survey of the Belvoir Ranch Property -- referred to Finance Committee. (Clerk's note: Pursuant to information previously provided by Mayor Kaysen during Consent Agenda action; this item is affiliated with a Resolution and would be reflected as a Resolution on the next Finance Committee meeting agenda.)

[CA] Agreement between the City of Cheyenne and Stride Learning Center for the lease of a transit program bus to be used by Stride's clients -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 2 to Contract No. 5316 between the City of Cheyenne and J2 Contracting for additional materials and labor for construction of David R. Romero South Cheyenne Community Park (State Loan & Investment Board). Motion (per Consent Agenda) carried (amount not to exceed \$142,841.67). (#5316)

[CA] Contract Modification No. 3 to Bid No. M-5-09 between the City of Cheyenne and RECCO, Inc. d/b/a Five-R-Co. for additional work and amenities for the Cheyenne Youth Activity and Community Center (2007-2010 1% Sales Tax). Motion (per consent agenda) carried. (amount not to exceed \$63,357.00). (#5321)

[CA] Contract Modification No. 1 to Contract No. 5467 between the City of Cheyenne and Cheyenne Light, Fuel & Power Company for a reduction in cost of extension of electric service to the Construction & Demolition Recycle Building (State Loan & Investment Board) -- referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 4769 between the City of Cheyenne and Attention Homes, Inc. for rental renewal of real property for an additional 24 month term -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-12-10 for a contract between the City of Cheyenne and Aztec Construction Co., Inc., of Cheyenne, for the Transfer Station Fire Main Loop Project (State Loan & Investment Board) (postponed from 11-23-09). Mr. Valdez moved to accept the bid in an amount not to exceed \$113,724.00, seconded by Ms. Broyles. Mr. Valdez moved to postpone to Dec. 28, 2009, seconded by Mr. Collins. It was advised the postponement is to allow time to receive an administrative report on SLIB projects and funding information. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] Consideration of Bid #R-3-10 for one new 2011 cab & chassis truck with dump body, spreader, snow plow and tarpaulin from Peterbilt of Wyoming for the Street and Alley Department (2003-2006 & 2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-5-10 for two 2010 4x4 Utility Vehicles from Greiner Ford, Casper, WY for the Public Works Dept and Construction Engineering Dept. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

APPOINTMENTS:

Reappointment of John Goodier and Jerry Crader to the Art in Public Places Committee; Randy Byers and Robert Clary to the Building Code Board of Appeals; Mark Archer, Marvin Gertsch and Noel Griffith Jr. to the Contractor Licensing Board; Ronald Duckworth to the Historic Preservation Board; and Stephen Ganison, Lily Clabots, and Carol Slane to the Housing & Community Development Advisory Council. Mr. Collins moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Appointment of Steve Rodriguez to the Art in Public Places Committee; Michael Peel to the Building Code Board of Appeals; Kevin Paintner to the Cheyenne Regional Airport Board; Lisa O'Sullivan, Kelly Weidlich, and James Rose to the Historic Preservation Board; Jason Mitchell, Norman Jepson, and Khale Lenhart to the Housing & Community Development Advisory Council; and Janet Tilton and Jeff Rayment to the Board of Adjustment. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

ANNOUNCEMENTS/REPORTS/MOTIONS

[CA] Authorizing the City of Cheyenne, Golf Division, to purchase from C&M Golf and Grounds Equipment of Denver, CO, one Front Deck Mower to replace mower currently used at Prairie View Golf Course. Motion (per Consent Agenda) carried (amount not to exceed \$37,500.00).

Announcement of a Public Hearing to be held December 28, 2009 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Wei Sheng Qiu d/b/a Golden House Chinese Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY (License currently held by Yu Zheng d/b/a Golden House Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY).

Announcement of a Public Hearing to be held December 28, 2009 at 6:00 p.m. in City Council Chambers to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the parcels commonly known as Southwest Properties, situated in a portion of Sections 12 and 13, T. 13N., R. 67W., of the 6th P.M. Laramie County, WY. (Generally located east of Southwest Drive, South of Interstate 80, West of BNSF Railroad, and North of Woodenshoe Road, including Cheyenne Animal Shelter and associated rights-of-way).

Announcement of Appointment of Philip Griggs to the Public Transit Advisory Board and Kurt Zunker to the Fire Civil Service Commission, to be confirmed December 28, 2009.

Under other business: Ms. Ash provided suggestions for potential budget cost reduction measures due to current budgetary revenue concerns, and Mayor Kaysen extended holiday greetings to council members, employees and community residents.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:37 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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